



**PUNJAB
ENERGY DEVELOPMENT
AGENCY**

(A Punjab Govt. Undertaking)

i/mp/slr/250/loa/catIII/ loa-photon557

No. : 3862

Dated : 19/10/15

M/s. Photon Ultrawave Pvt. Ltd.
48, Friends Colony (E),
New Delhi-110065

Subject: Letter of Award (LoA) for Development of 50 MW Solar PV Power Project in the State of Punjab under Grid Connected Solar Photovoltaic Power Project, Phase- III.

Dear Sir,

1. Please refer to your E-bid dated 26th August 2015 submitted for allocation of 50MW Grid Connected Solar PV Power Project in response to Request for Proposal (RfP) no. PEDA/ET/15-16/SP/1103 for development of Solar PV power projects in the state of Punjab under Grid Connected Solar Photovoltaic Power Projects of 500MW, Phase-III and its further amendment dated 24th July 2015.
2. We are pleased to inform you that your company has been selected for setting up of 50 MW Solar PV Power Project in the State at the Net Tariff of Rs. 5.57/- (Rupees Five and fifty seven paise only) / kWh after discount on generic tariff of Rs. 7.04 / kWh (as notified by PSERC in its RE Tariff order for Solar PV power projects for FY 2015-16), offered by you in your financial bid for developing a Grid Connected Solar PV Power Project in the State of Punjab.
3. Please note that acceptance of your bid is subject to compliance to the following terms and conditions:-
 - a. As per RfP, Clause no. 3.6 C, if a Project Company / Special Purpose Vehicle (SPV) (100% subsidiary of bidding company) under Companies Act is required to be formed before signing of Implementation Agreement then the constitution of such Company should comply with the conditions of share holding commitments as given at the time of bid submission and / (in line with Consortium Agreement). The share holding of the Lead

SOLAR PASSIVE COMPLEX

PLOT NO. 1-2, SECTOR 33-D, CHANDIGARH (U.T.) - 160 034 Tel. : 0172-2663328, 2663382
Fax : 0172-2662865 E-mail : peda_spa@yahoo.co.in Website : <http://www.peda.gov.in>

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Member holding more than 50% of the voting rights shall not change from the date of submission of e-bid up to one year after the commissioning of the project.

- b. Whether or not the financial capability/resources of Affiliate(s)/Group/Parent company are relied upon to achieve the required Net Worth of @ Rs. 1.20 crore per MW i.e. 20% has to be infused in the Project Company before signing of Implementation Agreement and balance 80% before Financial Closure in accordance with the bid financial criteria stated in the RfP and its amendment. The bank statement starting from the date of submission of bid till date will also be required to be submitted before signing of IA. A copy of Return of Allotment of shares filed with ROC must also be submitted before signing of IA."
- c. The company is required to submit a detailed project report giving detailed design and salient features of the project within 15 days from the date of issue of LOA and pay non refundable facilitation service charges @ 0.5% of the total Project Cost (as per the project cost given in the Detailed Project Report (DPR) submitted by the Solar Project Developing company) before signing of Implementation Agreement.
- d. In accordance with the terms of the RfP document, you are required to furnish the following payments / documents to PEDDA prior to or at the time of signing of Implementation Agreement.
 - i. A copy of the Certificate of Incorporation of Project Company.
 - ii. Details of promoters and their shareholding in the Project Company, duly certified by the Statutory Auditor / Chartered Accountant in original.
 - iii. Performance Security, to be submitted by way of irrevocable bank guarantees or through RTGS / IPG mode @ rate of Rs.

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10 Lacs / MW as per RfP, Clause no. 3.20, (Original BG to be submitted, in case of BG).

* The BG shall be valid for a period of 20 months from the date of signing of Implementation Agreement.

- e. The company is required to sign the Implementation Agreement (IA) with Punjab Energy Development Agency (PEDA) within 30 days from the date of issue of Letter of Award (LOA).
- f. The company is required to sign the Power Purchase Agreement (PPA) with Punjab State Power Corporation Limited (PSPCL) within 30 days after signing of Implementation Agreement with PEDA.
- g. The Project Developer shall report tie up of Financing Arrangements for the project and submit the following documents within 150 days from the date of signing Power Purchase Agreement (PPA):-
 - 1.1 Final selection of technology i.e. Crystalline / Thin Film / Concentrator PV / specific any other technology etc.
 - 1.2 Order Copy / Agreement Copy with technology Provider / Supplier for supply of modules, equipments for said technology.
 - 1.3 A Certificate from the project / client situated anywhere in world that the proposed technology by the manufacturer / technology provider is in successful operation.
 - 1.4 The project developer will submit the final loan sanction letter from the bank/FI along with copy of the signed loan agreement.
 - 1.5 Grid Feasibility Letter from PSPCL as per Format 6.8 of RfP (Separate letter for each project)
- h. Land Documents:- Project Developer is required to submit within 150 days from the date of signing of Power Purchase Agreement :-

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- Record of Revenue Rights / certified copy of title deeds showing that ownership rights or lease hold rights for at least 30 years in respect of project land in the name of the Project Company. The title deeds must be only registered as per the provisions of Registration Act.
- Affidavit from the Authorized Signatory of the Solar Power Developer listing the details of the land and certifying total land required for the project under clear possession of the Project Company.
- A Certified English translation copy of title deeds from an approved translator, in case above title deeds / documents are in language other than English / Punjabi Languages.

It is responsibility of the bidder company to arrange land and submit land documents i.e Regd. Land sale deed papers /regd. Lease deed papers of clear title land which can be used for Solar Power Plants without any encumbrance and so that it is eligible for grant of CLU or to arrange the new land for setting up of the allocated plant capacity.

All the aforesaid documents are required to be submitted within 150 days from the date of signing of PPA. Further 30 days extension in time period for submission of land registered papers on payment of a fee of Rs. 5000/day will be given on the request of your company. In case the company is unable to produce the aforesaid documents as per above time schedule then 15 days notice for the cancellation of allotment shall be issued and thereafter Letter of Award (LoA), IA, and PPA performance bank guarantees shall be forfeited.

4. Commissioning Schedule and Penalty for Delay in Commissioning:

The Project Company is required to commission the allotted capacity in all respects within 12 months from the date of signing of PPA. After 12 months period , extension can be given for 30 days in the First go on payment of a fee of Rs. 20000/MW/day and thereafter for another period of

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maximum 60 days ,on a payment of a fee of Rs.40,000/MW/day. Thereafter, right retained with PEDa for forfeiture of 100% Performance Guarantee.

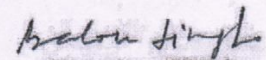
In case the commissioning of project is delayed beyond 15 months from the date of signing of PPA, the Project Developer shall pay to PSPCL the Liquidated Damages @ Rs. 20,000/- (Rupees Twenty Thousand Rupees Only) per MW per day for delay in such remaining Capacity which is not commissioned.

5. Kindly note, that all the other terms and conditions shall be as per the Request for Proposal (RFP) document PEDa/ET/15-16/SP/1103 and its further amendment dated 24th July 2015.

You are requested to kindly acknowledge the receipt of LOA.

Thanking you.

Yours sincerely,


Director, PEDa